

Modes of international law-making

Introduction

This chapter and the next examine various modes of international law-making to investigate the interests and perspectives they support. Here, we describe the law with respect to customary international law, general principles of law and subsidiary sources of law. [Chapter 4](#) looks more specifically at the law of treaties. We deal with the traditional sources of international law, as well as proposals to extend them, and we use the international legal response to violence against women as a case study of the problems and potential of the sources of international law. The tension between feminist theoretical and pragmatic goals described in [chapter 2](#) is evident in this discussion. While we argue that the accepted sources of international law sustain a gendered regime, we also attempt to accommodate women-specific harms within the standard account of sources.

Sources of international law

Statute of the ICJ, article 38(1)

The sources of law define how new rules are made and existing rules are repealed or abrogated.¹ Analysis of them traditionally commences with article

1 A. Cassese and J. Weiler (eds), *Change and Stability in International Law-Making* (Berlin/New York, De Gruyter, 1988). See the general discussion in the major text books, e.g. I. Brownlie, *Principles of Public International Law* (Oxford, Clarendon Press, 5th edn 1998) chapter 1; R. Jennings and A. Watts, *Oppenheim's International Law* (London, Longmans, 9th edn 1992) vol. 1 at 22–50; P. Malanczuk, *Akehurst's Modern Introduction to International Law* (London, Routledge, 7th edn 1997) chapter 3; M. Shaw, *International Law* (Cambridge, Grotius, 4th edn 1997) chapter 3. See also M. McDougal and M. Reisman, 'The prescribing function in the world constitutive process: how international law is made', 6 *Yale Studies in World Public*

38(1) of the Statute of the ICJ² which lists as sources: international conventions, whether general or particular; international custom; general principles of law; judicial decisions and the teachings of the most highly qualified publicists.³

International conventions are binding upon parties to them.⁴ Although the expression 'law-making treaties' is often used to describe multilateral agreements, a treaty creates rights and duties for third parties only in specified circumstances,⁵ for example when it declares or generates customary international law.⁶ Customary international law, binding upon all states, has two components: uniform and consistent state practice and *opinio juris sive necessitatis* (states' belief that the behaviour is required by law).⁷ Both requirements operate at a high level of generality. Decision-makers identifying the operative rules of customary international law must choose from among the many daily activities and statements made in the name of states, those that they regard as evidence of state practice. Emphasis is given to the official acts of government: statements and claims made by political leaders in local, regional and global public fora; diplomatic communications; judicial and administrative decisions. The chain of claim and counter-claim that typically constitutes evidence of state practice may be affected by acquiescence or silence⁸ or by 'persistent objection' to an activity.⁹ *Opinio juris* is also derived from the behaviour of a state's ruling elite.

Order (1980) 249; D. Kennedy, 'The sources of international', 2 *American University Journal of International Law and Policy* (1987) 1.

2 Statute of the ICJ, 26 June 1945, 1 UNTS xvi.

3 The Statute lists the sources of decision-making, not of international law. A distinction is sometimes drawn between 'formal' sources of law and 'material' sources. See G. Fitzmaurice, 'Some problems regarding the formal sources of international law', in *Symbolae Verzijl: Presentées au Professeur JHW Verzijl* (La Haye, Martinus Nijhoff, 1958) 153.

4 Vienna Convention on the Law of Treaties, 23 March 1969, 1155 UNTS 331, article 34.

5 *Ibid.*, articles 35–7.

6 *Ibid.*, article 38. *North Sea Continental Shelf Cases* (Federal Republic of Germany v. Denmark; Federal Republic of Germany v. The Netherlands) 1969 ICJ Rep. 3 (Judgment of 20 February); *Fisheries Jurisdiction Case* (United Kingdom v. Iceland) Merits 1974 ICJ Rep. 3 (Judgment of 25 July); *Military and Paramilitary Activities in and against Nicaragua* (Nicaragua v. United States) Merits 1986 ICJ Rep. 14 (Judgment of 27 June) (*Nicaragua*, Merits).

7 E.g. *Case Concerning the Continental Shelf* (Libyan Arab Jamahiriya v. Malta) 1985 ICJ Rep. 29 (Judgment of 3 June) at para. 27.

8 I. McGibbon, 'The scope of acquiescence in international law', 31 *British Yearbook of International Law* (1954) 143.

9 *Anglo-Norwegian Fisheries Case* (United Kingdom v. Norway) 1951 ICJ Rep. 116 (Judgment of 18 December). On the controversies surrounding the persistent objector rule see J. Charney, 'The persistent objector rule and the development of customary international law', 56 *British Yearbook of International Law* (1985) 1; T. Stein, 'The approach of the different drummer: the principle of the persistent objector in international law', 26 *Harvard International Law Journal* (1985) 457.

Despite their separate categorisation in article 38(1), treaties and customary international law do not operate in isolation from each other.¹⁰ Customary international law is not codified in the same manner as a negotiated treaty text. However, the articulation of states' positions in negotiations can contribute to the generation of customary international law. Drafts, position papers and preliminary studies can clarify stances that may be incorporated within the text, or become part of future state practice. Customary international law that is created in this way shares some characteristics with treaty law. The absence of women from the formal treaty-making processes that is described in [chapter 4](#) thus also affects the development of custom.

The content of the category of 'general principles of law recognised by all civilised nations' is controversial.¹¹ When drafted as part of the Statute of the PCIJ, article 38(1)(c) was a compromise between those who regarded general principles as derived from natural law and those who saw them as drawn from national law.¹² It is now widely accepted that article 38(1)(c) applies to principles of both international and domestic law.¹³ The concept incorporates maxims normally found within state domestic law, including procedural principles, good faith¹⁴ and *res judicata*. It does not, however, contemplate the incorporation of municipal law principles 'lock, stock and barrel' into international law.¹⁵ The drafters of the Statute of the PCIJ suggested that general principles would form a safety net to avert the danger of a *non liquet* if neither custom nor treaty law provided an answer to the

10 John Hazard has described custom and treaty law as 'intertwined' in A. Cassese and J. Weiler, above note 1 at 31.

11 For the argument that the term 'civilised nations' is not exclusionary see T. Elias, *New Horizons in International Law* (Dordrecht, Sijthoff & Noordhoff, 1979) at 118. See further *ibid.* (2nd rev. edn 1992) at 295–6.

12 On the intentions of the drafters of article 38(1)(c) see G. Van Hoof, *Rethinking the Sources of International Law* (Deventer, Kluwer, 1983) at 135–9; B. Cheng, *General Principles of Law as Applied by International Courts and Tribunals* (London, Stevens, 1953 reprinted 1987) at 6–22.

13 D. O'Connell, *International Law* (London, Stevens, 2nd edn 1970) vol. 1 at 9.

14 E.g. *Nuclear Tests Cases* (Australia v. France; New Zealand v. France) 1974 ICJ Rep. 253, 457 (Orders of 20 December) at para. 46.

15 Judge McNair emphasised that 'the true view of the duty of international tribunals in this matter is to regard any features or terminology which are reminiscent of the rules and institutions of private law as an indication of policy and principles rather than as directly importing these rules and institutions.' *Status of South West Africa Case* 1950 ICJ Rep. 128 (Adv. Op. 11 July) at 148 (sep. op. Judge McNair). See M. Bassiouni, 'A functional approach to "general principles of international law"', 11 *Michigan Journal of International Law* (1990) 768 at 774; J. Lammers, 'General principles of law recognised by civilised nations', in F. Kalshoven (ed.), *Essays on the Development of the International Legal Order* (Alphen aan den Rijn, Sijthoff & Noordhoff, 1980) 53 at 62.

question before the Court.¹⁶ General principles can also be used in interpreting treaties and articulating customary law.

Judicial decisions and the writings of well-known publicists are subsidiary sources of international law.¹⁷ Although there is no formal doctrine of precedent in international law,¹⁸ the articulation of principles by the ICJ, or other international adjudicators, can clarify customary international law and treaty provisions. Decisions of regional and domestic tribunals, notably state supreme courts, may also be used by decision-makers when determining the requirements of customary international law.¹⁹

Other sources

The traditional schema of sources in article 38(1) preserves state control over what is deemed law, but is an incomplete reflection of the realities of contemporary international law-making. Other important modalities of law-making have been identified, for example through the resolutions of international organisations, such as the General Assembly of the UN, the practice of international organisations and international codes of conduct.²⁰ An important feature of the international legal scene in the 1990s was global summits on broad, interlocking issues of international concern that have culminated in declarations and strategies for state and intergovernmental and non-governmental institutional action.²¹ Despite the high level of preparations, the often intense negotiations and the large number of participating states, traditional international legal doctrine denies the status of formally binding law to the conclusions of these conferences.

16 B. Cheng, above note 12 at 390; M. Bassiouni, above note 15 at 778. For the view that general principles 'trump' custom and conventions see A. Verdross, 'Les principes généraux du droit dans la jurisprudence internationale', 52 *Receuil des Cours* (1935) vol. II at 24–6, cited in B. Simma and P. Alston, 'The sources of human rights law: custom, *jus cogens* and general principles', 12 *Australian Yearbook of International Law* (1992) 82 at 88.

17 Statute of the ICJ, article 38(1)(d).

18 *Ibid.*, article 59.

19 R. Lillich, 'The proper role of domestic courts in the international legal order', 11 *Virginia Journal of International Law* (1970) 9 at 11. See also R. Falk, *The Role of Domestic Courts in the International Legal Order* (Charlottesville, Virginia University Press, 1964).

20 A. Pellet, 'The normative dilemma: will and consent in international law-making', 12 *Australian Yearbook of International Law* (1992) 22 at 27–40.

21 These include the World Summit for Children, New York 1990; the World Conference on the Environment and Development, Rio de Janeiro 1992; the World Conference on Human Rights, Vienna 1993; the International Conference on Population and Development, Cairo 1994; the World Summit for Social Development, Copenhagen 1995; the Fourth World Conference on Women, Beijing 1995; and Habitat II, Istanbul 1996.

The concept of 'soft' law has been developed to cover non-legally binding instruments that nevertheless create expectations about future action.²² States that reject the normative content of a particular instrument may simply emphasise its non-binding nature, while others assert the opposite view. The subject matter of many 'soft' law instruments is significant. States use 'soft' law structures for matters that are not regarded as essential to their interests ('soft' issues of international law) or where they are reluctant to incur binding obligations. Many of the issues that concern women thus suffer a double marginalisation in terms of traditional international law-making; they are seen as the 'soft' issues of human rights²³ and are developed through 'soft' modalities of law-making that allow states to appear to accept such principles while minimising their legal commitments.

On a traditional analysis, 'soft' law can develop into customary international law if supported by the appropriate state practice and *opinio juris*.²⁴ A non-binding instrument may also be the forerunner of a subsequent treaty on the same subject.²⁵ Indeed its programmatic and evolutionary function is widely accepted as one of the benefits of this form of recording consensus.²⁶ Georges Abi-Saab has identified three significant interdependent criteria for determining whether a soft law instrument has crystallised into customary international law: the circumstances of the adoption of the instrument, including voting patterns and expressed reservations; the concreteness of the document; and the existence of follow up procedures.²⁷ More broadly, Jonathan Charney has urged acceptance of 'universal' international law to supplement the traditional methods of international law-making.²⁸ He has derived 'universal' law from global multilateral fora and has used similar criteria to Abi-Saab to distinguish authoritative debates or resolutions within them. Charney has given weight to the extent participating states are made

22 See further C. Chinkin, 'The challenge of soft law: development and change in international law', 38 *International and Comparative Law Quarterly* (1989) 850.

23 See chapter 7.

24 In the *Nicaragua* case, the ICJ gave weight to General Assembly resolutions prohibiting the use of force and illegal intervention as evidence of both state practice and *opinio juris*. *Nicaragua*, Merits, above note 6 at paras 183–6.

25 E.g. the Declaration on the Elimination of Discrimination against Women, GA Res. 2263 (XXII), 7 November 1967, preceded the Convention on the Elimination of All Forms of Discrimination against Women, 18 December 1979, 1249 UNTS 13, reprinted in 19 *International Legal Materials* (1980) 33.

26 R.-J. Dupuy, 'Declaratory law and programmatic law: from revolutionary custom to "soft law"', in N. Hom (ed.), *Studies in Transnational Economic Law*, vol. 1, *Legal Problems of Codes of Conduct for Multinational Enterprises* (Antwerp/Boston, Kluwer Deventer, 1980) 247.

27 G. Abi-Saab, 'Cours général de droit international public', 207 *Recueil des Cours* (1987) 33 at 160–1. Compare *Texaco Overseas Petroleum Co and California Asiatic Oil Co v. Libya* 53 *International Law Reports* (1977) 389.

28 J. Charney, 'Universal international law', 87 *American Journal of International Law* (1993) 529.

aware that the proposed rule is a refinement, codification, crystallisation or progressive development of existing principles of law, and the level of widespread support for the rule.²⁹ Reliance on states' votes emphasises that 'universal' law remains state law.³⁰

Claims of the normative nature of soft law instruments have led on the one hand to strong reaffirmations of the exclusivity of the traditionally accepted sources and the place of states within them,³¹ and, on the other, to assertions of the inadequacy of those sources in providing mechanisms for change and development in modern international law.³² Harold Koh has described a 'brave new world of international law' where: 'transnational actors, sources of law, allocation of decision function and modes of regulation have all mutated into fascinating hybrid forms. International Law now comprises a complex blend of customary, positive, declarative and soft law.'³³

Debates on the sources of international law

Although article 38(1) was drafted over seventy years ago to guide the PCIJ, it remains widely cited as the authoritative list of the sources of international law.³⁴ However, it has also generated considerable debate.³⁵ Certain questions have been consistently addressed. These include the requirements

²⁹ *Ibid.* at 544.

³⁰ Compare *Legality of the Threat or Use of Nuclear Weapons* 1996 ICJ Rep. 226 (Adv. Op. 8 July), reprinted in 35 *International Legal Materials* (1996) 809 at 879 where Judge Weeramantry (dissenting) referred to the millions of signatures on petitions against nuclear weapons that had been received by the Court.

³¹ E.g. I. Brownlie, 'The rights of peoples in modern international law', in J. Crawford (ed.), *The Rights of Peoples* (Oxford, Clarendon Press, 1988) 1 at 15; P. Weil, 'Towards relative normativity in international law?', 77 *American Journal of International Law* (1983) 413; G. Danilenko, *Law-Making in the International Community* (Boston, Martinus Nijhoff, 1993); J. Klabbers, 'The redundancy of soft law', 65 *Nordic Journal of International Law* (1996) 167. See also the remarks of Vice-President Schwebel in his dissenting opinion in *Legality of the Threat or Use of Nuclear Weapons*, above note 30 at 839: 'The General Assembly has no authority to enact international law and cannot be lightly assumed to declare it . . . When faced with continuing and significant opposition, the repetition of General Assembly resolutions is a mark of ineffectuality in law formation as it is in practical effect.'

³² E.g. B. Simma and P. Alston, above note 16 at 88.

³³ H. Koh, 'A world transformed', 20 *Yale Journal of International Law* (1995) ix. See also H. Koh, 'Why do nations obey international law?' 106 *Yale Law Journal* (1997) 2599.

³⁴ The importance of the sources listed in article 38(1) has been reaffirmed in *The Lotus Case* (France v. Turkey) 1927 PCIJ ser. A no. 10 (Judgment of 7 September); *North Sea Continental Shelf Cases*, above note 6; *Nicaragua*, Merits, above note 6; *Legality of the Threat or Use of Nuclear Weapons*, above note 30 at para. 64.

³⁵ See e.g. G. Van Hoof, above note 12; R. Higgins, *Problems and Process: International Law and How We Use It* (Oxford, Clarendon Press, 1994) chapter 2.

for establishing a rule of customary international law;³⁶ the weight to be accorded to what a state says rather than what it does;³⁷ the possibility of 'instant' custom;³⁸ the effect of treaties on third parties;³⁹ and the content of general principles of law.

Since the decolonisation era of the 1960s, other aspects of the sources of international law have become more controversial, for example the ways in which sources are manipulated to preserve the control over substantive principle by those states that had previously dominated the international legal system. Such issues include how and why a newly emergent state is bound by the customary international law in existence at the time of its acquiring statehood;⁴⁰ how 'law-breaking' by dissentient states transforms into new customary international law; how the requirement of uniformity applies in the generation of customary international law when the numerical majority of states dissents from the practice of the minority of economically and politically powerful states; the law-making effect of a multilateral treaty;⁴¹ which treaties bind a successor state, and whether it is critical that the new state came into being through decolonisation rather than secession from, or union with, an existing state.⁴² The hierarchy of sources of international law has also prompted debate, in particular the relationship between treaty and

36 E.g. there is disagreement on the length of time needed to establish a consistent practice, on the degree of uniformity required and on the degree of consistency between state practice and *opinio juris*. See F. Kirgis, 'Custom on a sliding scale', 81 *American Journal of International Law* (1987) 147; K. Wolfke, 'Some persistent controversies regarding customary international law', 24 *Netherlands Yearbook of International Law* (1993) 1.

37 E.g. the preference for state action in A. D'Amato, *The Concept of Custom in International Law* (Ithaca, Cornell University Press, 1971) and K. Wolfke, *Custom in Present International Law* (Dordrecht, Martinus Nijhoff, 2nd rev. edn 1993) as opposed to statements in M. Akehurst, 'Custom as a source of international law', 47 *British Yearbook of International Law* (1974–75) 1.

38 B. Cheng, 'Custom: the future of general state practice in a divided world', in R. Macdonald and D. Johnston (eds), *The Structure and Process of International Law: Essays in Legal Philosophy, Doctrine and Theory* (Dordrecht, Martinus Nijhoff, 1983) 513.

39 See C. Chinkin, *Third Parties in International Law* (Oxford, Clarendon Press, 1993) at 25–146.

40 See A. D'Amato, above note 37; L. Henkin, *How Nations Behave: Law and Foreign Policy* (New York, Columbia University Press, 2nd edn 1979) at 112; J. Brierly, *The Law of Nations: An Introduction to the International Law of Peace* (Oxford, Clarendon Press, 6th edn 1963) at 52.

41 See R. Baxter, 'Multilateral treaties as evidence of customary international law', 41 *British Yearbook of International Law* (1965–66) 275; A. Weisburd, 'Customary international law: the problem of treaties', 21 *Vanderbilt Journal of Transnational Law* (1988) 1; 'Interpreting state practice under treaties: a brief colloquy on the composition of customary international law', *ibid.* at 457.

42 A. Cassese, *International Law in a Divided World* (Oxford, Clarendon Press, 1986) at 179–98; R. Jennings and A. Watts, above note 1 at 208–44.

customary international law.⁴³ Perhaps the most significant aspect of the debate on hierarchy is over the concept of *jus cogens*⁴⁴ which limits state sovereignty by asserting the fundamental values of the international legal system, including those based on the integrity of the human person.

Underlying this discussion are questions about the nature of international law and the impact of power relations on the making of international law.⁴⁵ Does individual state consent (voluntarism) remain the basis of legal obligation, as was forcefully asserted in *The Lotus Case*,⁴⁶ or has there been a shift towards a type of international 'democracy' in which a broader notion of the international community creates law? Could this type of system embrace the views of non-state actors? The notion of consent itself has been challenged as a basis for legal, as distinct from political, obligation. Thus Koskeniemi has argued that consent is either 'apologist', in that it cannot uphold an objective concept of law, or 'utopian' in that it derives from some non-consensual, non-statist base such as natural law.⁴⁷

The deficiencies of international law-making have been particularly highlighted in fields of international law where exclusive state interests may conflict more directly with those of non-state actors.⁴⁸ Examples include human rights,⁴⁹ international economic law⁵⁰ and environmental law.⁵¹ Traditional international law-making assumes a monolithic state voice that silences individuals and other non-elite groups in the international arena, except insofar as their interests are championed by states. International law nevertheless has an impact upon individuals. It may be directly applicable

43 M. Akehurst, 'The hierarchy of the sources of international law', 47 *British Yearbook of International Law* (1974-75) 273; C. Parry, *The Sources and Evidences of International Law* (Manchester, Manchester University Press, 1968); R. Baxter, 'Treaties and custom', 129 *Recueil des Cours* (1970) 25; H. Chodosh, 'An interpretive theory of international law: the distinction between treaty and customary law', 28 *Vanderbilt Journal of Transnational Law* (1995) 973.

44 Vienna Convention on the Law of Treaties, article 53 (peremptory norm of international law, *jus cogens*) and article 64 (an emergent norm of *jus cogens*). See further chapter 4.

45 M. Byers, 'Custom, power and the power of rules: customary international law from an interdisciplinary perspective', 17 *Michigan Journal of International Law* (1995) 109.

46 Above note 34 at 18.

47 M. Koskeniemi, *From Apology to Utopia: The Structure of International Legal Argument* (Helsinki, Finnish Lawyers' Publishing Co., 1989) chapter 2.

48 G. Van Hoof, above note 12 at 2.

49 I. Gunning, 'Modernizing customary international law: the challenge of human rights', 31 *Virginia Journal of International Law* (1991) 211. See also the discussion in B. Simma and P. Alston, above note 16.

50 I. Seidl-Hohenveldern, 'International economic soft law', 198 *Recueil des Cours* (1986) vol. III, 68; K. Hossain (ed.), *Legal Aspects of the New International Economic Order* (New York, Nichols Publishing Company, 1980).

51 G. Palmer, 'New ways to make international environmental law', 86 *American Journal of International Law* (1992) 259.

within domestic legal systems, and domestic law in turn may influence the development of international law.

Debates about the sources of international law have not examined the way that international legal doctrine on sources is built on a gendered base. The vocabulary of international law-making relies on concepts that have a gendered dimension. For example, the sources of international law are based on a hierarchical and abstract model and they are presented as identifiable through rational means. As we discussed in [chapter 2](#), this characterisation codes the sources as male and superior to sources of law that may be contextual and concrete. The distinction drawn between ‘hard’ and ‘soft’ law also rests on a dichotomy that has gendered significance, implying the superiority of the ‘hard’ (male) over the ‘soft’ (female). International legal scholarship does not discount the value of ‘soft’ law entirely,⁵² but ‘hard’, binding law remains the preferred paradigm of international law, and all forms of international law-making are assessed in relation to this form. A striking description of the consensus system in international law as ‘an enormously elaborate mating ritual that ends with the pretence of a consummation that has not taken place’⁵³ emphasises the view of consensus as a failed form of ‘hard’ decision-making.

Another gendered tendency in traditional law doctrines on sources is the emphasis on obligation formed through consent. The model of the individual, autonomous state freely choosing to accept or reject international law rules reinforces models of behaviour that are coded as male. As Nancy Hirschmann has pointed out: ‘By declaring that all obligations, to be such, must be taken on voluntarily, consent theory ignores or denies what women’s experience reveals . . . that obligations do in fact exist that are not chosen but stem from the character of human relationships.’⁵⁴

Women’s participation in international law-making

The gendered structure of international law-making will not be altered simply by ensuring that more women participate in its processes. It is important,

52 See above notes 24–7 and accompanying text.

53 R. Righter, *Utopia Lost: The United Nations and World Order* (New York, Twentieth Century Fund Press, 1995), quoted in R. Sabel, *Procedure at International Conferences: A Study of the Rules of Conferences and Assemblies on International Inter-Governmental Organizations* (Cambridge, Cambridge University Press, 1997) at 307, quoted in a book review of Sabel by Philip Alston, 92 *American Journal of International Law* (1998) 353 at 354.

54 N. Hirschmann, ‘Freedom, recognition and obligation: a feminist approach to political theory’, 83 *American Political Science Review* (1989) 1229, quoted in C. Ku, ‘Treaties and gender bias: what frame(s) work(s)?’, in *Contemporary International Law Issues: Opportunities at a Time of Momentous Change* (The Hague, Nederlandse Vereniging voor Internationaal Recht, 1993) 414.

however, to understand the obstacles to women's involvement in the development of international legal principles. In this section the campaign to have the issue of violence against women recognised as an international legal wrong incurring state responsibility will be used as a case study of these barriers. We describe the generation and articulation of such a norm by non-state actors and its emergence, primarily in 'soft' law form, within state-controlled arenas. We then consider whether such a norm has entered the corpus of international law through the generation of customary law, as a general principle of law, or in some other way.

Customary international law and 'soft' law

Diverse forms of violence against women are endemic in all states.⁵⁵ A number of doctrinal difficulties are encountered, however, in asserting that this violence breaches customary international law. First, state practice is not consistent with such a norm. Where the facts of state practice do not conform with assertions of legal norms, the reality may be disregarded in preference for the statements of governments that such actions are prohibited.⁵⁶ Jurists have proposed various devices to interpret state behaviour. For example, Frederick Kirgis has argued that state practice and *opinio juris* operate along a sliding scale requiring greater consistency in state practice where there is little evidence of *opinio juris*, but tolerating contradictory behaviour where there is greater consensus about its illegality. He has concluded that 'the more destabilizing or morally distasteful the activity . . . the more readily international decision-makers will substitute one element for the other'.⁵⁷ Similarly Oscar Schachter has argued that where the conduct is 'violative of the basic concept of human dignity' statements of condemnation are sufficient evidence of its illegitimacy under customary international law.⁵⁸ Christian Tomuschat has in turn propounded the deduction of custom from 'the core philosophy of humanity' that is sanctified in the unwritten constitution of the international community and the UN Charter.⁵⁹ This process is limited to fundamental human rights norms including those relating to the right to life, the prohibitions against torture and slavery and the equality of human beings. This deduction is envisaged as free-standing and as not entailing reference to state

⁵⁵ See chapter 1.

⁵⁶ E.g. the ICJ in the *Nicaragua* case found that, despite many instances of international armed conflict, there was sufficient evidence of contrary *opinio juris* expressed through the resolutions of the General Assembly to support principles of customary law prohibiting the use of force and wrongful intervention. *Nicaragua*, Merits, above note 6 at paras 186–90.

⁵⁷ F. Kirgis, above note 36 at 149.

⁵⁸ O. Schachter, 'International law in theory and practice: general course in public international law', 178 *Recueil des Cours* (1982) 21 at 334–8.

⁵⁹ C. Tomuschat, 'Obligations arising for states without or against their will', 241 *Recueil des Cours* (1993) vol. IV 195 at 303.

practice and *opinio juris*. Again, Michael Byers has analysed customary international law as a means of universalising public interest: the behaviour of states acts as an indicator of the degree to which they are interested in achieving a particular legal outcome.⁶⁰

None of these approaches necessarily facilitates the assertion of a rule of customary international law condemning violence against women. First, unlike acknowledged human rights abuses, ‘private’ violence against women is not even formally condemned as illegal in many societies.⁶¹ Second, the violence may be tolerated on social, traditional or religious grounds and as such is excluded from international concern.⁶² Until 1993 there had been no generalised General Assembly statement condemning violence against women⁶³ and little indication that it was widely regarded as ‘destabilizing or morally unacceptable’ or contrary to the ‘core philosophy of humanity’. There is no sign that the international community wishes to eliminate violence against women and impose state responsibility for failure to do so. Thus, there is no strong evidence of *opinio juris* to justify discounting the contrary state practice. Third, the connection between the dominance of women by men and systemic violence is also not well understood. Significantly, Schachter’s list of human rights violations sufficiently condemned to be deemed contrary to customary international law despite widespread inconsistent practice includes slavery, genocide, torture, mass killings, prolonged arbitrary imprisonment, and systematic racial discrimination, or any consistent pattern of gross violations of human rights, but omits gender discrimination or gendered violence.⁶⁴ Fourth, the intensity of the condemnation of the behaviour and the identity of those denouncing it is significant in international law. In order to constitute *opinio juris*, condemnation must be through official government channels. The voices of women’s groups rarely make such impact. Indeed, violence against women is often presented as a ‘private’ affair outside the control of the state.⁶⁵

60 M. Byers, above note 45.

61 See further [chapter 5](#).

62 UN, *Women, Challenges to the Year 2000* (New York, UN, 1991) at 65–78.

63 GA Res. 40/36, 29 November 1985, was limited to domestic violence. Its preamble identified the main harms of domestic violence as the undermining of the family structure, and contributing to psychological harms in, and delinquency of, children. See H. Charlesworth and C. Chinkin, ‘Violence against women: a global issue’, in J. Stubbs (ed.), *Women, Male Violence and the Law* (Sydney, Institute of Criminology Series no. 6, 1994) 135.

64 O. Schachter, above note 58. This list follows that of the American Law Institute, *Restatement (Third) of the Foreign Relations Law of the United States* (St Paul, American Law Institute, 1987) at para. 702. Compare S. Wang, ‘The maturation of gender equality into customary international law’, 27 *New York University Journal of International Law and Politics* (1995) 899.

65 C. Bunch, ‘Women’s rights as human rights: toward a re-vision of human rights’, 12 *Human Rights Quarterly* (1990) 486. See [chapter 2](#) for feminist analyses of

Another process that might generate customary principles would be through the elaboration of a treaty prohibition on violence against women. If such a treaty were concluded and widely ratified without broad reservations, it could be influential in creating a general norm.⁶⁶ To date the only such treaty is the Inter-American Convention on the Prevention, Punishment and Eradication of Violence against Women, adopted by the Organisation of American States (OAS) at Belem do Para and applicable only in its region.⁶⁷ The beginnings of a more broadly applicable treaty might be found in the Declaration on the Elimination of Violence against Women adopted by the General Assembly in 1993.⁶⁸ The Declaration was the result of a Canadian initiative in 1991 that progressed through a meeting of non-governmental experts in November 1991.⁶⁹ The expert working group's draft was submitted to an intersessional working group of the UN Commission on the Status of Women (CSW) in 1992, and then through the UN Economic and Social Council (ECOSOC) and the General Assembly.

The Declaration defines gender-based violence broadly and asserts that states should 'exercise due diligence to prevent, investigate and . . . punish acts of violence against women whether those acts are perpetrated by the State or private persons'.⁷⁰ The formulation of principles has been described as the first step in the law-making process by identifying the wrong and directing attention towards the substance of the potential rule.⁷¹ Although it is formally a legally non-binding instrument, a declaration is considered to have greater weight than a resolution.⁷² The Declaration on the Elimination of Violence thus has the potential to generate state practice and *opinio juris* to crystallise into customary international law. International doctrine pays attention to the method by which a declaration or resolution is adopted by an international organisation. If a vote is taken, it is considered important

public and private distinctions and [chapter 7](#) for their impact on international human rights law.

66 On the generation of custom through 'law-making' treaties see *North Sea Continental Shelf Cases*, above note 6 at 176–9.

67 9 June 1994, reprinted in 33 *International Legal Materials* (1994) 1534.

68 UN Declaration on the Elimination of Violence Against Women, GA Res. 48/104, 20 December 1993. See further [chapter 7](#).

69 H. Charlesworth, 'Worlds apart: public/private distinctions in international law', in M. Thornton (ed.), *Public and Private Feminist Legal Debates* (Melbourne, Oxford University Press, 1995) 243 at 256–9.

70 Declaration on the Elimination of Violence against Women, article 4(c).

71 H. Meijers, 'How is international law made? The stages of growth of international law and the use of its customary rules', 9 *Netherlands Yearbook of International Law* (1978) 3.

72 B. Sloan, 'General Assembly resolutions revisited', 58 *British Yearbook of International Law* (1987) 39 at 93. Sloan has argued that there is a presumption that a declaration constitutes law where an intent to declare law is evinced and it has been adopted unanimously, or at least nearly unanimously, or by genuine consensus.

for the establishment of *opinio juris* (or for 'universal' law in Charney's terms) that a resolution is adopted with as many affirmative votes as possible, especially from the most influential states.⁷³ One way to avoid negative votes is to have a resolution adopted by consensus, as occurred with the Declaration on the Elimination of Violence. Consensus removes the potential for confrontation at the time of vote-taking and presents the appearance of acceptance by all interest groups.⁷⁴ Its focus upon harmony and co-operation means that it may be perceived as consistent with feminist goals.⁷⁵ However, consensus may conceal the exploitation of power during negotiations to block provisions unwelcome to some actors; it may also be achieved only through elimination of controversial or far-reaching provisions. The position of the Declaration is equivocal in this regard. Although some of the text is ground-breaking,⁷⁶ some significant sections were removed in negotiations to facilitate the Declaration's adoption by the General Assembly. For example, at the intersessional meeting of the CSW in 1992, the United States and Sweden insisted on removing an explicit nexus between violence against women and human rights. A reference to 'degrading representation of women in the media' as a form of violence was also deleted from the experts' text.⁷⁷

The ICJ has emphasised the importance of norm-generating, rather than aspirational, language in instruments that evidence custom.⁷⁸ The operative provisions of the Declaration by contrast contain mainly aspirational language, for example '[s]tates should condemn violence against women'⁷⁹ and '[t]he organs and specialized agencies of the United Nations system should . . . contribute to the recognition and realization of the rights'.⁸⁰ Moreover, obligations to implement the purposes of the Declaration are not couched in mandatory terms.⁸¹

73 *Legality of the Threat or Use of Nuclear Weapons*, above note 30 at para. 71. In this case the ICJ rejected the argument that General Assembly resolutions declaring the illegality of nuclear weapons constituted *opinio juris* since several had been adopted 'with substantial numbers of negative votes and abstentions'.

74 Compare K. Zemanek, 'Majority rule and consensus technique in law-making diplomacy', in R. Macdonald and D. Johnston, above note 38 at 857; A. D'Amato, 'On consensus', 8 *Canadian Yearbook of International Law* (1970) 104; A. Cassese, 'Consensus and some of its pitfalls', 58 *Rivista di Diritto Internazionale* (1975) 754.

75 E.g. the discussion of decision-making by consensus in R. Lederman, 'Looking back: the women's peace camps in perspective', in D. Russell (ed.), *Exposing Nuclear Phallacies* (New York/Oxford, Pergamon Press, 1989) 244. See also note 53.

76 E.g. article 4 clarifies that custom, tradition or religion do not justify violence against women, and the specific inclusion of private actors.

77 See H. Charlesworth and C. Chinkin, above note 63 at 25.

78 *North Sea Continental Shelf Cases*, above note 6 at para. 72.

79 Declaration on the Elimination of Violence against Women, article 4.

80 *Ibid.*, article 5.

81 *Ibid.*, article 4(a–q), article 5(a–h).

Although non-binding instruments cannot become binding merely through repetition, such restatement can provide evidence of a growing *opinio juris*.⁸² What other instruments relate to violence against women? The General Assembly has built upon the 1993 Declaration by expressing concern for especially vulnerable groups of women, for example migrant workers.⁸³ The Convention on the Elimination of All Forms of Discrimination Against Women (the Women's Convention) does not explicitly condemn violence against women, but in General Recommendation no. 19, its monitoring body, the Committee on the Elimination of Discrimination Against Women (CEDAW) stipulated that 'gender based violence is a form of discrimination which . . . impairs or nullifies the enjoyment by women of human rights and fundamental freedoms'.⁸⁴ The Vienna Conference on Human Rights in 1993 also stressed 'the importance of working towards the elimination of violence against women in public and private life' and urged states 'to combat violence against women'.⁸⁵ Similar provisions were included in the Cairo Programme of Action⁸⁶ and the Beijing Platform for Action.⁸⁷ The UN Crime Commission has also adopted resolutions condemning such violence.⁸⁸ The repetition of statements through a cross-section of international fora strengthens the argument for the requisite *opinio juris*.

Implementation and monitoring mechanisms are considered significant in enhancing the normative value of a 'soft' law instrument.⁸⁹ The Declaration on the Elimination of Violence against Women has no enforcement provisions, making it easier to dismiss as mere rhetoric. However, the appointment in 1994 by the UN Commission on Human Rights (CHR) of a Special Rapporteur to examine the causes and consequences of violence against women suggests an intention to monitor closely the Declaration's

82 ' . . . a series of resolutions may show the gradual evolution of the *opinio juris* required for the establishment of a new rule'. *Legality of the Threat or Use of Nuclear Weapons*, above note 30 at para. 70.

83 Resolution on measures to prevent acts of violence against women migrant workers, GA Res. 49/165, 23 December 1994.

84 General Recommendation no. 19 Violence Against Women, UN Doc. A/47/38, CEDAW/C/ 1992/L.1/Add. 15, 30 January 1992, paras 1 and 7.

85 World Conference on Human Rights, Vienna Declaration and Programme of Action, 25 June 1993, UN Doc. A/CONF. 157/23, reprinted in 32 *International Legal Materials* (1993) 1661, II, para. 38.

86 International Conference on Population and Development, Cairo, UN Doc. A/CONF. 171/13, 18 October 1994, para. 4.9.

87 Fourth World Conference on Women, Declaration and Platform for Action, 15 September 1995, UN Doc. A/CONF. 177/20, reprinted in 35 *International Legal Materials* (1996) 401 (Beijing Platform for Action), Critical Area of Concern D, paras 112–30.

88 UN Commission on Crime Prevention and Criminal Justice, Resolution on the Elimination of Violence against Women, 5th Session, Vienna, May 1996.

89 G. Abi-Saab, above note 27 at 162.

implementation.⁹⁰ Similarly, CEDAW has been active in promoting its General Recommendation no. 19. By closely scrutinising states' reports and questioning their representatives on the incidence of gender-based violence and steps taken to reduce it, CEDAW has worked to create an understanding of the requirements of the Convention that is not directly attributable to its text.⁹¹ These are of course 'soft' methods of enforcement,⁹² but they nevertheless serve to enhance the continued visibility of the instrument. The binding nature of the Inter-American Convention on Violence against Women allows for 'harder' implementation mechanisms, which draw upon those of the Inter-American Convention on Human Rights, the American Commission and Court of Human Rights. Thus the Convention against Violence allows states parties and the Inter-American Commission on Women to request an advisory opinion on its interpretation⁹³ and provides an individual complaint mechanism.⁹⁴ Recourse to these procedures would provide an interpretative jurisprudence on the Convention that in turn might generate principles at least of regional customary international law,⁹⁵ and possibly custom of broader application.

This analysis has suggested how evidence of *opinio juris* can be assembled in order to argue that the Declaration on the Elimination of Violence against Women has contributed to customary international law. Consistent state practice is also needed to achieve this status. Actions of NGOs and individuals in urging governmental compliance with the Declaration are likely to be discounted in determining state practice. However, pressure can

90 The appointment of the Special Rapporteur was approved in CHR Res. 1994/45, UN Doc. ESCOR, 1994, Supp. no. 4, 140, 11 March 1994. In 1997, the Special Rapporteur, Radhika Coomaraswamy's, mandate was extended for a further three years: CHR Res. 1997/44.

91 General Recommendation no. 19, para. 2. See also General Recommendation no. 12, 3 March 1989. Declaration on the Elimination of Violence Against Women, article 4(m) states that information on violence against women and measures taken to combat it should be included in states' reports to all relevant human rights committees.

92 P. Birnie, 'Legal techniques of settling disputes: the soft settlement approach', in W. Butler (ed.), *Perestroika and International Law* (Dordrecht, Martinus Nijhoff, 1990) 177.

93 Article 11.

94 Article 12. The Inter-American Commission on Human Rights held admissible on 9 October 1998 a case against Trinidad and Tobago which concerned the imposition of the death penalty on a woman for involvement in the murder of her common-law husband, who had allegedly long been violent towards her. The violence had not been raised during her trial. The applicant alleged violations of both the American Convention on Human Rights (articles 4, 5, 8 and 11) and the Inter-American Convention on Violence against Women, ratified by Trinidad and Tobago on 4 June 1996: *Trinidad and Tobago, Indravani Ramjattan* Inter-American Commission on Human Rights, Report no. 63/98 (Admissibility) Case no. 11837.

95 On regional customary international law see the *Asylum Case* (Columbia v. Peru) 1950 ICJ Rep. 266 (Judgment of 20 November).

be brought to bear on states by groups monitoring implementation. A state might change its practice with respect to recognition and prosecution of crimes of violence against women to be consistent with international condemnation of such behaviour.⁹⁶ NGOs can assist in generating state practice by campaigning in domestic arenas for appropriate statements in parliaments and other official bodies. Bringing test cases in domestic, regional and international tribunals and intervening in appropriate cases can all encourage a change in state practice.

On the other hand, although an enormous amount of energy and commitment was required for women to bring 'soft law' instruments requiring the elimination of violence against women into the international arena, under traditional sources of international law their non-binding form reduces their normative effect. It is difficult to assert the existence of custom in the face of consistent opposition from powerful and influential states.⁹⁷ Even if an international prohibition of violence against women became widely accepted, it is possible that opposing states could claim to be 'persistent objectors' to the norm.⁹⁸ It may be argued that, if customary international law is diffuse, ambiguous and subject to rejection by persistent objectors, it is not a worthwhile status to seek for an issue such as the prohibition of violence against women. An alternative strategy might be to argue for the normative effect of General Assembly resolutions,⁹⁹ acknowledging the change in the sources of law that this entails.¹⁰⁰

General principles of law

Can the Declaration on the Elimination of Violence against Women be asserted to rest on general principles of law and as such to be binding upon states? There has been a recent academic revival of interest in the potential

96 E.g. *Criminal Injustice: Violence against Women in Brazil* (New York, Human Rights Watch, 1991); D. Thomas and M. Beasley, 'Domestic violence as a human rights issue', 12 *Human Rights Quarterly* (1993) 36; Report of the Special Rapporteur on Violence against Women, its Causes and Consequences, Ms Radhika Coomaraswamy, submitted in accordance with CHR resolution 1995/85, UN Doc. E/CN.4/1996/53, 5 February 1996.

97 See above note 31.

98 See above note 9.

99 E.g. Reisman has argued that the three criteria for law-making can be present in soft law instruments: normative statements, expectations of authority and communication of the control intention. M. Reisman, 'The concept and functions of soft law in international politics', in E. Bello and B. Ajibola (eds), *Essays in Honour of Judge Taslim Olawale Elias* (Dordrecht, Martinus Nijhoff, 1992) 135.

100 This has been said to amount to a 'revolutionary change in the structure of the system itself': O. Garibaldi, 'The legal status of General Assembly resolutions: some conceptual observations', *Proceedings of the 73rd Annual Meeting of the American Society of International Law* (Washington DC, American Society of International Law, 1979) 324 at 325.

of article 38(l)(c) which had largely become a ‘historical remnant’.¹⁰¹ For example, M. Cherif Bassiouni has argued that increasing global interdependence has exposed the inadequacies of customary international law and treaties in responding to major issues such as human rights, the environment, economic development and international criminality.¹⁰² He has contended that general principles may be drawn upon to fill the gaps and that they may indeed become ‘the most important and influential source of international law’.¹⁰³ This view has some support in the operation of the International Criminal Tribunals for the former Yugoslavia and Rwanda. While the Tribunals’ jurisdiction is based upon customary international law and the authority of the Security Council,¹⁰⁴ their Rules of Procedure and Evidence have been created by moulding domestic criminal procedure and human rights standards to the needs of international criminal process.¹⁰⁵ However, it should be noted that in its Advisory Opinion on the *Legality of the Threat or Use of Nuclear Weapons*, the ICJ did not draw upon general principles, even of humanitarian law, as a basis for decision in the absence of conventional or customary law.¹⁰⁶

Bruno Simma and Philip Alston have encouraged the use of general principles of law as a contemporary source of human rights law. They have argued that the concept of general principles derived from the international plane needs to be expanded: ‘Principles brought to the fore in this ‘direct’ way . . . would (and should) then percolate down into domestic fora, instead of being elevated from the domestic level to that of international law by way of analogy.’¹⁰⁷

General principles drawn from international arenas may be found in statements of consensus, such as those expressed at global summits, and in the ‘soft’ law resolutions of the organs of the UN. An advantage identified by Simma and Alston in the revival of general principles for this purpose is that

101 G. Van Hoof, above note 12 at 145.

102 M. Bassiouni, above note 15 at 769. Schachter has also suggested that general principles of law are ripe for recruitment into international law in the areas of individual rights, contractual remedies, liability for extra-hazardous activities and restraints on the use of common property. O. Schachter, *International Law in Theory and Practice* (Dordrecht/Boston, Martinus Nijhoff, 1991) at 53.

103 M. Bassiouni, above note 15 at 769.

104 SC Res. 827, 25 May 1993; SC Res. 955, 8 November 1994. See further [chapter 10](#).

105 Rules of Procedure and Evidence, revised 30 January 1995, UN Doc. IT/32/Rev.3, as amended 17 December 1998, UN Doc. IT/32/Rev. 14. In *Prosecutor v. Dusko Tadic Jurisdiction of the Tribunal*, 10 August 1995, IT-94-I-T, the Trial Chamber discussed the sources of law used in preparing these Rules. Compare Rome Statute for the International Criminal Court, 17 July 1998, UN Doc. A/CONF. 183/9, reprinted in 37 *International Legal Materials* (1998) 999, article 21(l)(c).

106 Above note 30. Compare the dissenting opinion of Judge Higgins, *ibid.* at 937–8, who considered this a failure of judicial process.

107 B. Simma and P. Alston, above note 16 at 102.

it would retain the consensualist basis of international law while overcoming many of the conceptual and practical problems of customary international law, in particular the need to prove state practice and *opinio juris*. However, states might become more reluctant to express such general principles if they were to be incorporated into the body of international law in this way.

A serious concern with the use of general principles of domestic law in the international legal system is that they will simply transpose the problems of the former into the latter. National legal systems have been fashioned by men and reflect the interests of their designers.¹⁰⁸ Whether the national system is based upon a religious, capitalist or socialist ideology, the legal system reinforces the power structures of the male political elite. The subordination of women to men through both the structure and substance of law is one of the few truly universal features of national legal systems and there is little evidence of a general principle prohibiting gender-specific violence. Rather such violence has been tolerated or condoned.

Equity is a source of law sometimes considered to have the status of a general principle, which may be useful in this context.¹⁰⁹ Equity has been described as comprising 'general principles of justice as distinguished from any particular system of jurisprudence or the municipal law of any State'.¹¹⁰ It can provide constraints upon state consent by bringing objective notions of fairness and distributive justice into international law.¹¹¹ Some treaties require recourse to equity,¹¹² and the ICJ has increasingly invoked the concept.¹¹³ Equity can broaden the scope of legal argument in the sense that it allows a decision to be contextualised. It may be a suitable tool where there are competing interests and where the law is not highly developed as in the case of violence against women. The notion of equity can encompass fair economic and social arrangements,¹¹⁴ and facilitate shifting of power imbalances. Vaughan Lowe has pointed out that:

108 See generally R. Graycar and J. Morgan, *The Hidden Gender of Law* (Annandale, Federation Press, 1990).

109 C. Rossi, *Equity and International Law: A Legal Realist Approach to International Decision-Making* (New York, Transnational Publishers, 1993).

110 V. Lowe, 'The role of equity in international law', 12 *Australian Yearbook of International Law* (1992) 54.

111 *Ibid.* at 78–80.

112 E.g. UN Convention on the Law of the Sea, 10 December 1982, UN Doc. A/CONF. 62/122, reprinted in 21 *International Legal Materials* (1982) 1261, articles 59, 69, 70(4), 74, 83.

113 The ICJ has drawn upon equity and equitable principles in a number of boundary delimitation cases, e.g. *Maritime Delimitation in the Area between Greenland and Jan Mayen* (Denmark v. Norway) 1993 ICJ Rep. 38 (Judgment of 14 June) at 211 (sep. op. Judge Weeramantry).

114 In *Maritime Delimitation in the Area between Greenland and Jan Mayen*, Judge Weeramantry envisaged a new role for equity (which he viewed as being drawn from all global traditions and civilisations) in the development of environmental law and duties with respect to future generations. *Ibid.* at paras 235–42.

Reliance on law tends to favour interests, institutions and actors which have been predominant in the past. By abandoning the language of law for the language of morality – autonomous equity – that inherent bias . . . in the established legal system can be circumvented.¹¹⁵

Equity is, however, a variable concept and may be invoked to preserve the interests of the privileged. Indeed at the Fourth World Conference on Women in 1995 the notion of equity was used to resist claims to equality for women and girls. Some Islamic states argued against equal inheritance rights for females and males because different adult roles require an ‘equitable’ distribution of assets in correlation with responsibilities.¹¹⁶ Although this argument was not ultimately endorsed, it demonstrates the potential appropriation of the language of equity.

In practice, resort to the concept of equity has been primarily restricted to boundary delimitation and individual instances of resource allocation between states. It has not operated more broadly to provide for structural justice between persons within a state, or even between states. In the first hearing before the Arbitral Tribunal established in Bosnia and Herzegovina as a consequence of the Dayton Peace Accords,¹¹⁷ the Tribunal weighed the effect of its award on the populations in the respective areas and the international community’s need for regional stability in the name of equity.¹¹⁸ In such balancing exercises, the particular needs of women are unlikely to attract attention. Moreover it has been argued that the invocation of equity favours form over substance by allowing the appearance of legal regulation through objective standards, while in reality offering inadequate solutions to future conflict.¹¹⁹

Subsidiary sources of law

Article 38(1)(d) of the Statute of the ICJ lists judicial decisions as a subsidiary source of international law. In the 1990s there has been a proliferation of international tribunals that supplement the ICJ and the regional human rights courts.¹²⁰ Such judicial fora could be used for the identification and

115 V. Lowe, above note 110 at 78.

116 This argument was put forward in discussion of para. 274(d) of the Beijing Platform for Action. See D. Otto, ‘Holding up half the sky: but for whose benefit?’, 6 *Australian Feminist Law Journal* (1996) 7 at 14.

117 General Framework Agreement for Peace in Bosnia and Herzegovina, initialled Dayton, Ohio, 21 November 1995, signed Paris, 14 December 1995, reprinted in 35 *International Legal Materials* (1996) 75.

118 *Arbitral Tribunal for Dispute over Inter-Entity Boundary in Breko Area* (Republika Srpska v. Federation of Bosnia and Herzegovina), 14 February 1997, reprinted in 36 *International Legal Materials* (1997) 396.

119 M. Koskenniemi, ‘The politics of international law’, 1 *European Journal of International Law* (1990) 4.

120 E.g. the establishment of the *ad hoc* International Criminal Tribunals for the former Yugoslavia (1993) and Rwanda (1994) (see further [chapter 10](#)); the Tribunal

exploration of gender and sex issues, including those relating to violence against women. There are two potential limitations to this strategy: first, the lack of female participation in both domestic and international judicial tribunals; and second, the task of finding a tribunal with appropriate jurisdiction. In 1995 Judge Rosalyn Higgins became the first woman elected to the ICJ.¹²¹ Women have been under-represented also on the regional human rights bodies.¹²² The failure to elect women to the ICJ suggests a limited understanding of the stipulation in its Statute that ‘in the [Court] as a whole the representation of the main forms of civilization and of the principal legal systems of the world should be assured’.¹²³ This requirement has been taken seriously with respect to representation of regional, economic and political diversity, but not with respect to women. Election of more women would have an educative and symbolic effect by underscoring the validity of the presence of women in the most prestigious and visible positions within international judicial fields.¹²⁴ There is much debate over whether women judges reason differently from men,¹²⁵ especially as they would almost certainly

on the Law of the Sea which was established after the UN Convention on the Law of the Sea entered into force in 1994; and the World Trade Organisation Appellate Body (1995).

121 Madame Suzanne Bastid was judge *ad hoc* in Application for Revision and Interpretation of the Judgment of 24 February 1982 in the *Case Concerning the Continental Shelf* (Tunisia v. Libyan Arab Jamahiriya) 1985 ICJ Rep. 192 (Judgment of 10 December).

122 In 1997 there was one woman judge on the European Court of Human Rights (ECHR) (Ms Elisabeth Palm, Sweden), three women on the European Commission of Human Rights and two on the Committee of Independent Experts under the European Social Charter, Council of Europe, Human Rights Information Bulletin No. 40 (Strasbourg, March–June 1997) 24–5. In 1998, after the establishment of the new permanent ECHR under the European Convention for the Protection of Human Rights and Fundamental Freedoms, 4 November 1950, 213 UNTS 221, Protocol No. 11 Restructuring the Control Machinery Established Thereby, 11 May 1994, reprinted in 33 *International Legal Materials* (1994) 960, eight out of 39 judges were women: Ms Elisabeth Palm (Sweden); Mme Françoise Tulkens (Belgium); Mme Viera Straznicka (Slovakia); Mme Nina Vajic (Croatia); Mme Wilhelmina Thomassen (Netherlands); Mme Margarita Tsatsa-Nikoloska (FRY of Macedonia); Mme Sophie Greve (Norway); Mme Snejana Botoucharova (Bulgaria). As of December 1998 there were no women among the seven judges of the Inter-American Court of Human Rights. Article 14(3) of the Protocol of June 1998, OAU AFCHPR PROT, to the African Charter on Human and Peoples’ Rights, 26 June 1981, reprinted in 21 *International Legal Materials* (1982) 59, establishing an African Court of Human Rights requires the Assembly of the Organisation of African Unity to ensure adequate gender representation in the election of judges.

123 Statute of the ICJ, article 9.

124 E.g. S. Sherry, ‘The gender of judges’, 4 *Law and Inequality* (1986) 159; S. Sherry, ‘Civic virtue and the feminine voice in constitutional adjudication’, 72 *Virginia Law Review* (1986) 543.

125 See further [chapter 2](#) at notes 99–100 and accompanying text.

have received similar international legal training as their male colleagues. Studies of women trial judges in the United States have concluded that it is difficult to determine empirically whether women make different judicial decisions, particularly as there are very few cases decided by female judges.¹²⁶ The common practice of the ICJ of preparing a single majority judgment through a drafting committee ensures that only matters on which there is a high level of agreement will be included and reduces the scope for controversial approaches,¹²⁷ except in separate or dissenting opinions.¹²⁸ Moreover, the impact of any redress of sex imbalance in judiciaries alone may be difficult to gauge: personal attitudes, political outlooks, philosophical tendencies and ideological and cultural affinities all play an important role in decision-making.¹²⁹

The jurisprudence of the European Court of Justice (ECJ) and the regional human rights courts suggests that male judges will identify and remedy instances of sex discrimination if the discrimination is direct and obvious. The ECJ has developed a progressive concept of sex equality in the context of work-related matters that is based upon European directives, applicable in member states.¹³⁰ The European Court of Human Rights (ECHR) has redressed instances of direct sex discrimination,¹³¹ condemned violence against women in armed conflict¹³² and upheld women's right to information about abortion services, even against strongly supported laws within the local community.¹³³ It has used reasoning that can be extended by analogy to enhance the rights of women. For example it has held that article 8 of the

126 J. Gruhl, C. Spohn and S. Welch, 'Women as policy makers: the case of trial judges', 25 *American Journal of Political Science* (1981) 308.

127 On the process of reaching judgment in the ICJ see R. Higgins, 'Remedies and the International Court of Justice: an introduction', in M. Evans (ed.), *Remedies in International Law: The Institutional Dilemma* (Oxford, Hart Publishing, 1998) 1 at 2–5.

128 C. Weeramantry, 'The function of the International Court of Justice in the development of international law', 10 *Leiden Journal of International Law* (1997) 309 at 328–9.

129 See especially K. Llewellyn, *Karl Llewellyn on Legal Realism* (Birmingham, Legal Classics Library, 1986); W. Twining, *Karl Llewellyn and the Realist Movement* (London, Weidenfeld & Nicolson, 1973, reprinted Norman, University of Oklahoma Press, 1985); M. McDougal, 'Fuller versus the American legal realists: an intervention', 50 *Yale Law Journal* (1941) 827.

130 S. Prechal and N. Burrows, *Gender Discrimination Law of the European Community* (Aldershot, Dartmouth, 1990); T. Loenen, 'Changing the gender bias in the conceptualisation of equality by international judicial bodies', in *Contemporary International Law Issues: Opportunities at a Time of Momentous Change*, above note 54 at 424.

131 E.g. *Abdulaziz, Cabales and Balkandali v. UK* 94 ECHR (ser. A) (1985) (discrimination in nationality laws).

132 E.g. *Cyprus v. Turkey*, Application No. 6780/74; 6950/75, 10 July 1976; *Aydin v. Turkey* (1997) 3 *Butterworths Human Rights Cases* (1997) 300.

133 *Open Door and Dublin Well Woman v. Ireland* 249 ECHR (ser. A) (1992) 25. See J. Crawford, 'Democracy and international law', 64 *British Yearbook of International Law* (1993) 115.

European Convention on Human Rights¹³⁴ imposes positive obligations upon states to adopt measures designed to secure respect for private life, even in the sphere of individual relations.¹³⁵ The Inter-American system has also promoted women's rights in particular contexts.¹³⁶ However, the regional systems have also been reluctant to extend human rights protection to issues of reproductive freedom and have not addressed systemic discrimination against women.¹³⁷ As discussed in chapter 10, the two *ad hoc* International Criminal Tribunals are developing a sizable jurisprudence and practice on the prosecution of crimes against women.

The subject matter jurisdiction of the regional and specialised tribunals makes the consideration of issues of gender and sex more possible, while their procedures are more amenable to submissions from non-state actors.¹³⁸ There is a danger, however, that the jurisprudence of these bodies will be viewed as specialist and marginal to the mainstream development of international law. Unlike these institutions, the structure of the jurisdiction of the ICJ poses obstacles for bringing cases that would directly raise issues of equality. First, the Court's jurisdiction in contentious cases is restricted to states¹³⁹ and it has been reluctant to extend the ambit of third party procedures.¹⁴⁰ A state wishing to commence proceedings against another state challenging the latter's treatment of women as contrary to international law would have to overcome a number of jurisdictional and admissibility hurdles. Article 29 of the Women's Convention establishes the jurisdiction of the ICJ

134 Article 8(1) provides: 'Everyone has the right to respect for his private and family life, his home and his correspondence.'

135 *Airey v. Ireland* 32 ECHR (ser. A) (1979). See also *X & Y v. the Netherlands* 91 ECHR (ser. A) (1985).

136 E.g. *In the Matter of Viviana Gallardo et al*, Resolution of 4 September 1983, Int. Am. CHR (ser. A.) No. G101/81; *Mejia Egocheaga v. Peru* (1996) 1 *Butterworths Human Rights Cases* 229. See C. Medina, 'Toward a more effective guarantee of the enjoyment of human rights by women in the Inter-American system', in R. Cook (ed.), *Human Rights of Women: National and International Perspectives* (Philadelphia, University of Pennsylvania Press, 1994) 257; A. Ewing, 'Violence against women under the American Convention on Human Rights', 26 *Columbia Human Rights Law Review* (1995) 751. Compare C. Beyani, 'Toward a more effective guarantee of women's rights in the African human rights system', in R. Cook, *ibid.* at 285.

137 E.g. in *Bruggemann and Scheuten v. Germany*, 21 *European Yearbook of Human Rights* (1978) 638, the European Commission held that the right to privacy does not guarantee a woman's right to choose to have an abortion.

138 The ICJ is not alone in its restrictive approach towards submissions from individuals. In *US – Import Prohibition of Certain Shrimp and Shrimp Products*, a World Trade Organisation Panel held that it would not accept non-requested submissions from NGO sources: reprinted in 37 *International Legal Materials* (1998) 834 at 838–9. A distinction may be emerging between tribunals dealing with 'soft' issues of human rights which exercise greater flexibility in this regard and those dealing with 'hard' issues of interstate relations and trade.

139 Statute of the ICJ, article 34(1).

140 C. Chinkin, *Third Parties*, above note 39 at chapter 10.

over disputes concerning 'the interpretation or application' of the Convention. Many states have made reservations to this article.¹⁴¹ If jurisdiction cannot be established under article 29, it might be based on the non-discrimination articles of the International Covenant on Civil and Political Rights.¹⁴² This Covenant has its own enforcement mechanisms through the (as yet unused) provision for interstate complaint under article 41 and the right of individual petition under the Optional Protocol.¹⁴³ The Court has not had to decide whether the existence of an internal enforcement mechanism excludes its residual jurisdiction over disputes.¹⁴⁴ However the reluctance of states to use the interstate complaints procedures under those conventions where it is available¹⁴⁵ suggests that this route is unlikely.¹⁴⁶

The question of admissibility is not necessarily resolved by a determination of jurisdiction.¹⁴⁷ Technical restrictions limit the potential of the ICJ to consider issues of women's equality. First, an applicant state has to show a legal interest in the subject matter of a dispute between itself and the respondent.¹⁴⁸ States that are not parties to the proceedings can rarely present arguments in their own interest, nor on behalf of an NGO, nor in the public interest.¹⁴⁹

141 See [chapter 4](#).

142 International Covenant on Civil and Political Rights, 16 December 1966, 999 UNTS 171, reprinted in 6 *International Legal Materials* (1967) 368, articles 2 and 26.

143 16 December 1966, 999 UNTS 3, reprinted in 6 *International Legal Materials* (1967) 383.

144 Statute of the ICJ, article 36(1) accords the Court jurisdiction over 'all cases which the parties refer to it and all matters specially provided for in the Charter of the United Nations or in treaties or conventions in force'.

145 States have also not used the interstate complaint mechanism under the International Convention on the Elimination of All Forms of Racial Discrimination, 21 December 1965, 660 UNTS 195, article 11; the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, 10 December 1984, UN Doc. A/39/51, reprinted in 23 *International Legal Materials* (1984) 1027, substantive changes noted in 24 *International Legal Materials* (1985) 535, article 21. In Europe, the interstate procedure under the European Convention on Human Rights, article 24, has been infrequently used.

146 However, the proceedings brought by Paraguay with respect to the imminent death sentence to be carried out on a Paraguayan national who had not been accorded access to his consul indicates that human rights issues can be raised before the ICJ: *Case Concerning the Vienna Convention on Consular Relations* (Paraguay v. United States of America) 1998 ICJ Rep. (Order of 9 April), reprinted in 37 *International Legal Materials* (1998) 810.

147 *Case Concerning East Timor* (Portugal v. Australia) 1995 ICJ Rep. 90 (Judgment of 30 June).

148 E.g. *Nuclear Tests Cases*, above note 14.

149 *South West Africa Cases*, Second Phase (Ethiopia & Liberia v. South Africa), 1966 ICJ Rep. 4 (Judgment of 18 July). In *Nicaragua*, Judge Schwebel argued for public interest intervention: *Nicaragua*, Request for the Indication of Provisional Measures 1984 ICJ Rep. 169 (Order of 10 May) at 190, 196 (diss. op. Judge Schwebel); Declaration of Intervention of the Republic of El Salvador 1984 ICJ Rep. 215 (Order of 4 October) at 223 (diss. op. Judge Schwebel).

Since treatment of women in another state is unlikely of itself to be considered to create such a legal interest, the potential applicant would have to argue that co-membership of a treaty establishes mutual rights and obligations, breach of which can be legitimately challenged. Second, the third party right of intervention has been narrowly interpreted by the ICJ.¹⁵⁰ If a state were willing to request intervention under article 62 of the Court's Statute to present arguments about equality issues in a case arising between other parties, it would have to convince the Court that the proceedings affected some legal interest of its own. Intervention under article 63 requires construction of a Convention to which the intervening state is also a party.¹⁵¹ The large numbers of states parties to the Women's Convention would make this a possibility if the construction of the Convention was in issue before the Court.

Third party argument can address issues not raised by the parties. The International Criminal Tribunal for the Former Yugoslavia has accepted (and sought) *amicus* briefs, for example on the prosecution of sexual assault cases.¹⁵² The ICJ has not accepted any *amicus* brief in contentious cases, even from non-party states. A new approach might be considered by the ICJ, especially in its advisory jurisdiction where the Court can receive written or oral statements from states and international organisations.¹⁵³ Although its Statute does not appear to preclude information from NGOs,¹⁵⁴ the Court has denied similar access to them and to individuals.¹⁵⁵ The ICJ has even been reluctant to allow individuals access to its jurisdiction in the area of

150 Statute of the ICJ, articles 62 and 63. C. Chinkin, *Third Parties*, above note 39 at chapter 7. *Case Concerning the Land, Island and Maritime Frontier* (El Salvador v. Honduras) (Nicaragua intervening) 1992 ICJ Rep. 351 (Judgment of 11 September) is the only case where a request to intervene under article 62 has been granted.

151 See *Nicaragua*, Declaration of Intervention 1984 ICJ Rep. 215.

152 In *Prosecutor v. Dusko Tadic, Decision on the Prosecutor's Motion Requesting Protective Measures for Victims and Witnesses*, Decision of 10 August 1995, IT-94-I-T, the Trial Chamber referred to two *amicus* briefs it had received. One was jointly presented by a group of American NGOs, the second by Christine Chinkin. The International Criminal Tribunal for Rwanda has also accepted *amicus* briefs. See further [chapter 10](#).

153 Statute of the ICJ, article 66(2) allows submission of oral or written statements by international organisations 'considered by the Court . . . as likely to be able to furnish information'.

154 *Ibid.*, article 66(a).

155 In *International Status of South West Africa* 1950 ICJ Rep. 128 (Adv. Op. 11 July) the International League for the Rights of Man was permitted to make statements under article 66(2). In the *Asylum Case*, ICJ Pleadings, vol. ii at 228 and *Namibia*, ICJ Pleadings vol. ii at 649, 652, 672, applications by non-state actors to make statements were rejected. In the *Nuclear Weapons* Advisory Opinion, 28 states made written submissions and 22 made oral statements. None were allowed from NGOs, although some associated with the World Court Project had requested permission to do so: *Legality of the Threat or Use of Nuclear Weapons*, above note 30 at paras 5–10.

staff employment within the UN system.¹⁵⁶ It has bypassed oral proceedings in such cases and avoided deciding whether individuals could appear before it.¹⁵⁷ These restrictions make it difficult for a woman to argue sex discrimination or harassment in her employment within the UN before the ICJ in the event of an adverse decision by the Administrative Tribunal. In these cases, the immunity of international organisations to the jurisdiction of municipal courts even makes successful recourse to national law unlikely.¹⁵⁸

The ICJ's advisory jurisdiction may nevertheless be of value in achieving a judicial pronouncement on equality between women and men. The *Nuclear Weapons* advisory opinions were sought after an 'umbrella' NGO, the World Court Project, brought pressure on the World Health Organisation (WHO) through the World Health Assembly to do so. In the WHO case, the Court advised that specialised agencies are only competent to request opinions within the 'scope of their activities' and declined to give an opinion.¹⁵⁹ The UN General Assembly's request for an advisory opinion was, however, accepted. For the Court to give an advisory opinion on some aspect of women's rights, a specialised agency would have to demonstrate that the issues fell directly within its authority, or the General Assembly would have to be persuaded to request the opinion. All these procedural restrictions restrict the opportunities for the development of jurisprudence on sex equality by the ICJ that could be utilised as a subsidiary source of international law.

The other subsidiary source of international law listed in article 38(1) (d) is the work of 'the most highly qualified publicists' of international law. The tradition of international law scholarship has been created almost completely by male scholars who have little interest in questions of sex and gender.¹⁶⁰ For example, Andrew Byrnes has pointed out that the leading work on international standards with respect to the treatment of prisoners

156 The ICJ has advisory jurisdiction over decisions of the Administrative Tribunal, the Statute of which guarantees equality before the Court for the individual: Statute of the UN Administrative Tribunal, article 11 as amended in 1955 by GA Res. 957 (X), 8 November 1955.

157 *Application for Review of Judgment No. 158 of the United Nations Administrative Tribunal* 1973 ICJ Rep. 166 (Adv. Op. 12 July); *Application for Review of Judgment No. 273 of the United Nations Administrative Tribunal* 1982 ICJ Rep. 325 (Adv. Op. 20 July); *Application for Review of Judgment No. 333 of the United Nations Administrative Tribunal* 1987 ICJ Rep. 18 (Adv. Op. 27 May).

158 M. Singer, 'Jurisdictional immunity of international organizations: human rights and functional necessity concerns', 36 *Virginia Journal of International Law* (1995) 53. See further [chapter 6](#).

159 1996 ICJ Rep. 233 at 235. On the background of the case see E. Krisjansdottir, 'The legality of the threat or use of nuclear weapons under international law: the arguments behind the World Court's Advisory Opinion', 30 *New York University Journal of International Law and Policy* (1998) 291.

160 The paucity of leading international law texts written by women has been accentuated by the authority accorded to the writings of former justices of the ICJ

fails to address the way in which sexual violence is a major component of torture of women prisoners.¹⁶¹ The Women's Convention may receive cursory attention in sections on human rights in international law texts or in collections of 'basic' texts, but other treaties relating to women are rarely mentioned. Feminist writings are sometimes adverted to briefly in more recent international law scholarship but this attention is usually limited to a brief extract of a single article.¹⁶² Theoretical works consistently fail to consider the impact of feminist theories on international law. Gerry Simpson has noted that the response of the 'dominant liberal tradition' in international law has been one of 'blasé silence . . . feminism is tolerated providing it does not attack the sacred cows of liberalism, such as the autonomy of the self, the ideal of individual choice, or the imperatives of objectivity'.¹⁶³ The consequence is that the subsidiary sources of law replicate the silences and omissions of treaties and customary international law.

Contemporary international legal standards are determined by many other reference points. These include the views and conclusions of quasi-judicial bodies (for example, the UN human rights treaty bodies,¹⁶⁴ the regional human rights bodies, the UN Claims Commission,¹⁶⁵ the World Bank Inspection Panel,¹⁶⁶ the GATT (General Agreement on Tariffs and Trade)/WTO (World Trade Organisation) Panels); statements of practice from international organisations (for example, statements of the Executive Committee of the UN High Commissioner for Refugees (UNHCR) or statements

and former holders of key government positions. Their works are widely cited, creating a self-reinforcing cycle of authoritative statements. E.g. A. McNair, *The Law of Treaties* (Oxford, Clarendon Press, 1961); G. Fitzmaurice, *Law and Procedure of the International Court of Justice* (Cambridge, Grotius, reprinted 1986); H. Mosler, 'The international society as a legal community', 140 *Recueil des Cours* (1974) 17; P. Jessup, *A Modern Law of Nations* (New York, Macmillan, 1948); H. Lauterpacht, *The Function of Law in the International Community* (Oxford, Clarendon Press, 1933); Jimenez de Arechaga, 'International law in the past third of a century', 159 *Recueil des Cours* (1978) 9; T. Elias, *The Modern Law of Treaties* (Dobbs Ferry, Oceana, 1974); T. Elias, *The International Court of Justice and some Contemporary Problems* (The Hague, Martinus Nijhoff, 1983). The work of Judge Rosalyn Higgins is a rare exception to this male domination, e.g. R. Higgins, above note 35.

161 A. Byrnes, 'Women, feminism and international human rights law – methodological myopia, fundamental flaws or meaningful marginalisation?', 12 *Australian Yearbook of International Law* 205, discussing N. Rodley, *The Treatment of Prisoners under International Law* (Oxford, Clarendon Press, 1987).

162 E.g. A. D'Amato (ed.), *International Law Anthology* (Cincinnati, Anderson Publishing Co., 1994) 389.

163 G. Simpson, 'Is international law fair?', 17 *Michigan Journal of International Law* (1996) 61 at 62.

164 See [chapter 7](#).

165 Established in accordance with SC Res. 687, 3 April 1991, SC Res. 692, 20 May 1991.

166 I. Shihata, *The World Bank Inspection Panel* (Oxford, Clarendon Press, 1994).

of the UN High Commissioner for Human Rights); and the findings and reports of fact-finding missions, working parties, expert groups, thematic and country human rights rapporteurs and the UN Secretary-General. While these less formal sources generally follow the tradition of making women and their concerns invisible, in some cases their subject matter, the identity of the main contributors and the input from non-state actors have resulted in a greater awareness of the concerns of women.¹⁶⁷

Broadening the sources of law

The chapter thus far has examined the orthodox and accepted sources of international law. More radical suggestions have been made for new methods of international law-making that focus less on the role of states and consider the actions of other actors within the international arena, notably those of NGOs and 'international civil society'.

NGOs

There has been a dramatic proliferation in the numbers and activities of NGOs in the past years.¹⁶⁸ This has been recognised by governments and NGO contributions are sought in various arenas. NGOs are increasingly achieving access to national policy-making bodies and offering advice to senior government officials.¹⁶⁹ In turn this has had an impact upon regional and international decision-making. For example, Karen Knop has pointed to the growing role of NGOs within the Organisation for Security and Co-operation in Europe (OSCE) process.¹⁷⁰ She has noted that NGOs are now 'sought-after participants in a political process' and that the 'growing receptiveness

167 An example is the much greater attention paid by UNHCR to the specific needs of women refugees. See UNHCR Executive Committee Resolution No. 73 (XLIV) (1993), Refugee Protection and Sexual Violence; Guidelines on the Protection of Refugee Women (Geneva, UNHCR, 1991); Prevention and Response to Sexual Violence among Refugees (Geneva, UNHCR, 1993); UNHCR, Progress Report on Refugee Women, SC/1998/Inf.1, 25 May 1998 and Activities and Plans for Gender Mainstreaming, 25 May 1998. See further [chapter 7](#).

168 Secretary-General's Report, 15 June 1994, UN Doc. E/AC.70/1994/5, prepared in accordance with ECOSOC Res. 1993/214, para. 4. One hundred and fourteen international NGOs attended the First UN World Conference on Women in Mexico City in 1975 compared with some 2,900 at the Fourth in Beijing in 1995. Amnesty International, Report on the Fourth World Conference on Women, IOR 41/30/95, 22.

169 Secretary-General's Report, above note 168 at para. 29.

170 The OSCE is the successor to the Conference on Security and Co-operation (CSCE) in Europe. See V. Dronov, 'From CSCE to OSCE: historical retrospective', in M. Evans (ed.), *Aspects of Statehood and Institutionalism in Contemporary Europe* (Aldershot, Dartmouth, 1997) 105.

to NGO participation in the process has translated into [O]SCE provisions that allow NGOs to move from the corridors into the sessions'.¹⁷¹ Similarly international NGOs have become increasingly visible and active in the negotiations before and during global summit meetings.

Despite their high profile, such NGO activities do not challenge the primacy of states in law-making. However influential their input, the final documents, whether in treaty or soft law form, are agreed on by states. More radical are proposals that have been made for the acceptance of the activities of NGOs as constitutive of practice for determining rules of customary international law.¹⁷² This, it is argued, would reflect the contemporary dynamics of the formation of international law.¹⁷³ While this suggestion would import the different perspectives and priorities of NGOs into international law-making, it raises some significant questions. One issue would be deciding which of the thousands of NGOs in existence would have this status.¹⁷⁴ Another would be determining which of their activities could constitute 'practice'. A possible limitation on NGO participation in international law-making would be to focus on international NGOs that have observer status with the UN's ECOSOC.¹⁷⁵ This would ensure at least that the relevant NGOs had a formal commitment to the purposes and principles of the UN Charter. However, state hostility towards the mandates of particular NGOs can prevent ECOSOC recognition.¹⁷⁶ It is also important to note that the agendas of NGOs are not necessarily produced with greater democracy or transparency than the agendas of individuals or states.¹⁷⁷

NGOs have been the catalyst for some significant advances in standard-setting in the traditional, state-based development of international law. Would increasing the law-making status of NGOs allow greater access to the international system for women? The answer is a qualified one. Although women's NGOs have been very active in the international arena, they are often

171 K. Knop, 'Re/statements: feminism and state sovereignty in international law', 3 *Transnational and Contemporary Legal Problems* (1993) 293 at 310.

172 The role of NGOs in treaty negotiation is discussed in [chapter 4](#).

173 See I. Gunning, above note 49 at 227–34. For a critique of Gunning's proposals see K. Knop, above note 171 at 311–15.

174 NGOs in consultative status with ECOSOC increased from 41 to 987 between 1948 and 1993: Secretary-General's Report, above note 168 at para. 65.

175 Charter of the UN, 26 June 1945, article 71.

176 The dependence of NGOs on state approval was seen at the Fourth World Conference on Women where women's organisations from Tibet and Taiwan, anti-fundamentalist groups and pro-choice Catholic groups were denied accreditation. In 1994 the International Lesbian and Gay Association lost its ECOSOC consultative status after intense pressure from the United States. See D. Otto, 'NGOs in the UN system: the emerging role of international civil society', 18 *Human Rights Quarterly* (1996) 107 at 116–17.

177 See the discussion of the great variety and varying 'legitimacy' of NGOs in the *Proceedings of the 92nd Annual Meeting of the American Society of International Law* (Washington DC, American Society of International Law, 1998) at 20–36.

poorly funded and resourced.¹⁷⁸ Moreover, international women's NGOs tend to be dominated by women from the North.¹⁷⁹ Within even 'progressive' NGOs, women and their concerns tend to be marginalised. For example, Joni Seager has described the widespread racism and sexism in many environmental organisations and the effect that this has on the agenda of the movement generally.¹⁸⁰ She has observed that the 'environmental establishment' tends to be male and white, while the grassroots organisations all over the world are primarily run by women.¹⁸¹ Seager has argued that the increasing success of NGOs in political life has been associated with a rise in bureaucratisation and professional hierarchies. Success within the organisation depends on 'working in the way of men', adopting a particular form of aggressive politics within and outside the group. Power relations between women and men and between racial groups are regarded as irrelevant to the task of protecting the environment.¹⁸² Until 'mainstream' NGOs themselves recognise these limitations of their work, women are not likely to benefit directly from assigning significant legal status to NGO activities.

International civil society

The role of 'international civil society' has been presented as a counterbalance to the domination of states although the phenomenon of transnational citizen movements pre-dates the emergence of the state system of international organisation.¹⁸³ The category of 'international civil society' is broader than that of NGOs and covers a range of both organised and unorganised, alternative and complementary groupings. In different contexts international civil society can embrace officials of international organisations, voluntary organisations, grassroots organisations and transnational social organisations.¹⁸⁴ The concept also can encompass religious movements, professional groups such as lawyers, physicians, scientists or media personnel, business, trade and commerce representatives, trade unions, and indeed any body of persons that seeks to influence governments, to develop new modes of governance, to change international imperatives and to occupy political space.¹⁸⁵

The former UN Secretary-General, Boutros Boutros-Ghali, described civil society as a social movement depending upon citizen participation including:

178 For a fuller discussion see [chapter 4](#).

179 See J. Elshtain, 'Exporting feminism', 48 *Journal of International Affairs* (1995) 541.

180 J. Seager, *Earth Follies* (New York, Routledge, 1993) chapter 4.

181 *Ibid.* at 176.

182 *Ibid.* at 170–5.

183 R. Coate, C. Alger and R. Lipschutz, 'The UN and civil society: creative partnerships for sustainable development', 21 *Alternatives* (1996) 93 at 99.

184 *Ibid.*

185 *Ibid.*

The ability to associate with fellow human beings, to undertake tasks in and on behalf of the community in which one lives, to express and represent the needs of a community, and to engage in a dialogue with the governance to which this community relates.¹⁸⁶

Richard Falk has argued that the role of 'international civil society' challenges state-centred international law.¹⁸⁷ He has postulated that states are no longer the sole legitimate source of law-making and that ideas from other bodies should not be ignored when determining the international normative order. He has pointed to 'societal or populist' initiatives that respond to the failure of constitutional governments and international institutions to respond to particular events. International civil society thus acts without 'any authorization, directly or indirectly from government or the State'.¹⁸⁸ It is promoted as an expression of democracy where popular will is expressed by concerned citizens, and constituting a truly 'universal law.' Similarly, in response to what was considered to be the undemocratic character of the UN Security Council and the need for revitalisation of the General Assembly, in 1995 the Commission on Global Governance commended the 'transformation politics' of NGOs and international civil society and proposed an International Assembly of People and a Forum of Civil Society with direct access to the UN system.¹⁸⁹ UN Secretary-General Kofi Annan has accepted that an essential part of reforming the UN is revising and updating the ways the organisation interacts with civil society.¹⁹⁰

Promoting the idea of civil society allows possibilities for a broader range of interests to be considered in the definition of social goals. However, the identity of the participants in this debate and the method of setting priorities and agendas and making decisions are all critical. The composition of 'international civil society' is at issue for women. Although it is viewed as heterogenous and 'representative', its components – public, political, religious, economic and legal spheres – are dominated by men.¹⁹¹ A survey of

186 Secretary-General's Report, above note 168.

187 R. Falk, 'The rights of peoples (in particular of indigenous peoples)', in J. Crawford, above note 31 at 17.

188 *Ibid.* at 27.

189 *Our Global Neighbourhood: Report of the Commission on Global Governance* (New York, Oxford University Press, 1995) at 259.

190 Report of the Secretary-General, *Reviving the United Nations: A Programme for Reform*, UN Doc. A/51/950, 14 July 1997, paras 201–16.

191 Falk's examples of 'international civil society' include the MacBride Commission which investigated allegations of Israeli violations of international law during the invasion of Lebanon, 1982; the Permanent Peoples Tribunal which has examined human rights violations; the Nuremburg Tribunal organised by the German Green Party to investigate the nuclear arms race; and the Nuclear Warfare Tribunal, London, January 1985. R. Falk, above note 187 at 27–9.

NGOs carried out in 1995 found serious concerns about the domination of international fora by larger, white, organisations operating in the English language. It was noted that ‘prejudices of racism, sexism and colonialism still endure’.¹⁹² This notion of international civil society replicates the gendered division of national civil society into public and private spheres.¹⁹³ The ‘invisible college’ of international scholars – the network of leading international lawyers within universities, government departments and international organisations¹⁹⁴ – which articulates and evaluates developments in international law, is itself fettered by its limited composition and perspective.

Further, not all non-state actors have benign influence on international law. Some writers have emphasised the non-democratic nature of what has been termed ‘globalisation from above’ (the movements supporting economic capital flow and liberalisation of trade) which, it is urged, must be countered by the forces of ‘globalisation from below’, or civil society.¹⁹⁵ The UN Secretary-General has described an increase in groups that take advantage of the processes of globalisation, including access to vast audiences through the growth in electronic communications. He has pointed to the activities of terrorists, drug traffickers and those involved in organised crime, including prostitution and trafficking in women and children, and has called for multilateral action and the formation of partnerships to reverse the trend that strengthens these influences.¹⁹⁶

Despite these problems, international civil society retains some potential for reshaping international law. International civil society can work both through constituted NGOs and through informal groupings of citizens to

192 R. Krut, *Globalization and Civil Society: NGO Influence in International Decision-Making* (New York, UN Research Institute for Social Development, 1997) at 13–16.

193 See chapter 2. Compare A. Parashar, ‘Reconceptualisations of civil society: third world and ethnic women’, in M. Thornton (ed.), *Public and Private: Feminist Legal Debates* (Melbourne, Oxford University Press, 1995) 221. Most accounts of international civil society gloss over the role of women. For example, Richard Falk’s catalogue, above note 191, of initiatives of international civil society omitted the 1976 International Tribunal of Crimes against Women, which sat in Brussels and heard evidence from women worldwide on oppression and crimes committed against them. See D. Russell (ed.), *Crimes Against Women: The Proceedings of the International Tribunal* (San Francisco, Frog in the Well, 1976, reprinted 1984). A similar tribunal was held at the 1993 World Conference on Human Rights in Vienna. More recently Richard Falk has cited the Gulf War Crimes Tribunal organised in 1992 under the leadership of Ramsey Clark as an aspect of international civil society. R. Falk, Foreword in B. Chimni, *International Law and World Order: A Critique of Contemporary Approaches* (New Delhi, Sage Publications, 1993) 9 at 12.

194 See O. Schachter, ‘The invisible college of international lawyers’, 72 *North-western University Law Review* (1977) 217.

195 R. Falk, ‘The Nuclear Weapons advisory opinion and the new jurisprudence of global civil society’, 7 *Transnational Law and Contemporary Problems* (1997) 333.

196 Report of the Secretary-General, above note 190 at para. 209.

create what have been termed ‘transnational issue networks’.¹⁹⁷ Through mobilising information and sharing strategies, such networks seek to exercise leverage over national elites. These activities may empower those who have been silenced by formal state structures and bring together those with common interests at all levels. Three factors contributing to the current strength of issues networks have been identified: the growth of information and communication technologies; expansion of international conferencing; and the role of key individuals (‘transnational moral entrepreneurs’) in identifying new concerns and seizing opportunities to address them.¹⁹⁸ The positive results of women’s global networking can be seen in the attention accorded to women’s human rights at the World Conference on Human Rights in 1993, the acceptance of the Declaration on the Elimination of Violence against Women by the General Assembly and the inclusion of crimes against women in the jurisdiction of the international war crimes tribunals.¹⁹⁹

Conclusion

The limitations of the sources of international law are complex for women. The process of international law-making has been described as confrontational rather than co-operative.²⁰⁰ This is particularly true of customary international law where timely protest can exclude a state from the ambit of a particular principle. The commencement of proceedings before an international tribunal, which can result in the articulation of norms of customary international law, is deliberately adversarial. Treaty and ‘soft’ law negotiation may also be adversarial, especially where the allocation of scarce resources is at stake. International law-making, however, also contains non-adversarial elements of consensus decision-making and co-operation that suggest a move away from the supremacy of state sovereignty in law-making, although these law-making techniques can be manipulated by stronger powers or groupings of states.

Feminist analyses of the international legal order must grapple with the institutionalisation of state perspectives in law-making. Feminists have developed a complex view of the domestic state as a social process rather than as a legal category or set of institutions.²⁰¹ On this analysis, the state is not

197 K. Sikkink, ‘Human rights, principled issue-networks and sovereignty in Latin America’, 47 *International Organization* (1993) 411. See also M. Keck and K. Sikkink, *Activists beyond Borders: Advocacy Networks in International Politics* (Ithaca, Cornell University Press, 1998).

198 See K. Sikkink, above note 197.

199 R. Coomaraswamy, ‘Reinventing international law’, in P. Van Ness (ed.), *Debating Human Rights* (London/New York, Routledge, 1999) 167 at 173–5 (describing the role of women’s groups in international civil society).

200 I. Gunning, above note 49.

201 See further [chapter 5](#).

an expression of a single set of interests, but has its own complex set of power relations and issues, which include those of sex and gender. Feminists thus can work to fracture a monolithic account of state interest and to ensure their concerns are heard at the national and international level.

However, this strategy leaves the current structures of international law-making untouched. One method for promoting change would be to challenge the positivist paradigm of international law through a 'communitarian' perspective that asserts the normativity of principles fundamental to the international community regardless of individual state consent.²⁰² Challenges have been made to the strictly consensual view of international law-making, especially through the doctrine of *jus cogens*,²⁰³ and in the context of the creation and content of obligations owed *erga omnes*, that is to all members of the international community.²⁰⁴ One expression of this trend is that of the ICJ in *Barcelona Traction*:

an essential distinction should be drawn between the obligations of a state towards the international community as a whole, and those arising vis à vis another State in the field of diplomatic protection. By their very nature the former are the concern of all States. In view of the importance of the rights involved, all states can be held to have a legal interest in their protection; they are obligations *erga omnes*.²⁰⁵

Principles generated by such methods have been asserted to be inevitably unsatisfactory from a traditional perspective in that they create a hierarchy of normativity.²⁰⁶ On the other hand, John Tasioulas has argued that the move to communitarianism is supported by the reasoning of the ICJ in the *Nicaragua* case, where it gave prominence to the values of co-existence and co-operation.²⁰⁷

It affirms . . . that it is only as members of the community of human kind as a whole – a community whose self-understanding is integrally oriented in part by the acknowledgement of shared values – that its components (be they states, peoples, organisations or individuals) can understand their own identities . . . Membership of this community and subjection to at least its basic norms cannot be understood as an optional matter hinging on anterior expressions of state volition . . . Thus customary obligations *omnium* and the peremptory norms of *jus cogens* encapsulate the fundamental aspects of the

202 C. Chinkin, *Third Parties*, above note 39, chapter 16.

203 See [chapter 4](#).

204 E.g. the *Case Concerning East Timor*, above note 147 at para. 29 (the right of peoples to self-determination as a right *erga omnes*).

205 *Barcelona Traction Light and Power Company Case* (Belgium v. Spain) New Application 1970 ICJ Rep. 3 (Order of 5 February) at 32.

206 P. Weil, above note 31.

207 J. Tasioulas, 'In defence of relative normativity: communitarian values and the *Nicaragua* case', 16 *Oxford Journal of Legal Studies* (1996) 85.

antecedent commitment to world public order that undergirds the idea of an international community. Derogation from them . . . involves an abnegation of a state's identity as a member of that community.²⁰⁸

While the ICJ sees the concept of obligations owed *erga omnes* in state terms,²⁰⁹ Tasioulas has recognised the place of non-state actors in identifying such fundamental norms. The *omnes* need not be identified with states, but could be expressed through a wider range of voices. However, even if this view were adopted,²¹⁰ concerns about ensuring the inclusion of all women's voices in a broader, communitarian conception remain. How can the words of women be heard outside the privileged coterie of international lawyers?

Feminist questioning of the sources of international law raises an uneasy tension. On the one hand, we have argued that there are some possibilities for women's lives to be acknowledged in the orthodox account of sources. The formality of law and its claim of rational objective truth are exploited for the legitimacy they give women's claims. Indeed, the campaign with respect to violence against women has deliberately relied on these qualities. On the other hand, we have suggested that the design of the international legal system is gendered at a deep level and that its mantle of rationality and objectivity is a chimera. The strategic use of international law thus leads us to work with concepts that are problematic and inadequate.

208 *Ibid.* at 117.

209 E.g. *Case Concerning East Timor*, above note 147.

210 The ICJ's Advisory Opinion in *The Legality of the Threat or Use of Nuclear Weapons*, above note 30, suggests this is far from the case.